

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

JOHN HOFMEYER,

Petitioner

VS.

GABRIELA HOFMEYER,

Respondent

) Case Number: FDI-18-790640

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ENFORCEMENT OF SETTLEMENT PRODUCTION AND PRESERVATION OF DISBURSEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner John Hofmeyer (Husband) and Respondent Gabriela Hofmeyer (Wife). The parties married on 11/11/2006. At the prior 4/2/2026 hearing date, the Court made a finding that the parties' date of separation is 8/13/2018, for a marriage of 11 years and 9 months. The parties have one adult child, Lyra (DOB: 9/23/2007, age 18) and one minor child, Bryce (DOB: 4/19/2010, age 16). Husband is self-represented. Wife was formerly represented by attorney Allyson Overton and is now self-represented as of 8/13/2026.
- 2) A detailed procedural history of this case is set forth in the Findings and Order After Hearing filed 7/8/2026.
- 3) On for hearing is Husband's Request for Order filed 7/20/2026. Husband states that Wife did not comply with the orders set forth in the Findings and Order After Hearing filed 7/8/2026 which require Wife to produce to Husband by 7/15/2026 "the final Safeco settlement agreement and release; the request for dismissal, dismissal, and related proof of service documents; any

1 settlement statement or disbursement ledger; copies of settlement checks, endorsements, and
2 deposit records; and a verified accounting of all proceeds received, deposited, transferred,
3 withheld, or disbursed in connection with the Safeco claim and related litigation.” Husband states
4 that he contacted Wife’s attorney regarding the lack of receipt of the Court-ordered documents
5 and received no response. Husband asks the Court to order Wife to produce the documents within
6 3 Court days and set a compliance review hearing within 10 calendar days after the hearing, with
7 the Court reserving jurisdiction to impose sanctions or other enforcement remedies. Husband also
8 asks the Court to order Wife to “preserve all remaining Safeco insurance settlement proceeds,
9 together with any funds, accounts, assets, or property traceable to those proceeds, pending further
10 order of the Court.” Husband further asks the Court to order Wife not to “transfer, withdraw,
11 spend, assign, encumber, conceal, commingle, dissipate, distribute, pledge, or otherwise dispose
12 of any remaining Safeco insurance settlement proceeds of any funds, accounts, assets, or property
13 traceable to those proceeds.”

- 14 4) On 7/27/2026, Husband filed a Supplemental Declaration wherein Husband reiterates his
15 requested orders and attaches as an exhibit a copy of the Court’s Findings and Order After
16 Hearing filed 7/8/2026.
- 17 5) Per the Proof of Service filed 8/3/2026, Husband’s Request for Order and Supplemental
18 Declaration were emailed to Wife’s attorney Allysyn Overton on 7/31/2026.
- 19 6) On 8/11/2026, Husband filed an Amended Request for Order. Husband states that despite
20 additional attempts to contact Wife’s attorney, Wife has not complied with the Findings and
21 Order After Hearing filed 7/8/2026. Husband now asks the Court to make the following orders:

22 **“1. Finding of Noncompliance**

23 Find that Respondent failed to comply with Section B, paragraphs 5 and 6 of the June 23,
24 2026 Findings and Orders After Hearing by the July 15, 2026 deadline and remains out of
25 compliance. Section B, paragraphs 5 and 6 remain in full force and effect, and the relief
26 requested herein supplements and enforces those existing orders.

27 **2. Immediate Production of Settlement Agreement**

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Order Respondent to produce a complete and unredacted copy of the final executed Safeco settlement agreement and release no later than **5:00 p.m. Pacific Time on September 17, 2026.**

3. Immediate Production of Financial Account Statements

Order Respondent to produce, no later than **5:00 p.m. Pacific Time on September 17, 2026**, complete monthly statements from January 1, 2025 through the present for each financial account owned or controlled by Respondent, individually or jointly, that received, held, transferred, or disbursed Safeco claim or settlement proceeds. Redactions shall be limited to account numbers.

4. Verified Accounting

Order Respondent to provide, no later than **5:00 p.m. Pacific Time on September 17, 2026**, the verified accounting required by Section B, paragraph 5 of the June 23, 2026 Findings and Orders After Hearing, identifying all proceeds received, deposited, transferred, withheld, or disbursed in connection with the Safeco claim and related litigation.

5. Authorization and Contingent Elisor

Approve the **Authorization, Consent, and Waiver of Confidentiality attached as Exhibit D** and order Respondent to execute and provide the Authorization to Petitioner no later than **5:00 p.m. Pacific Time on September 17, 2026**. If Respondent does not comply by that deadline, appoint the **Clerk of the Court or Clerk's Designee as elisor** to execute the identical Authorization on Respondent's behalf no sooner than **8:30 a.m. Pacific Time on September 18, 2026**, without further noticed motion or hearing.

6. Preservation of Remaining Proceeds

Order Respondent to preserve all remaining Safeco claim or settlement proceeds and assets traceable to those proceeds pending completion of the verified accounting and appropriate allocation of available proceeds toward repair and restoration of the **community property.**

7. Compliance Review

1 Set a compliance-review hearing for **October 6, 2026, or the Court's earliest available**
2 **date thereafter**, to determine Respondent's compliance with Section B, paragraphs 5 and
3 6 of the June 23, 2026 Findings and Orders After Hearing and the enforcement orders
4 entered herein."

5 7) There is no Proof of Service on file demonstrating service of Husband's 8/11/2026 Amended
6 Request for Order.

7 8) On 8/13/2026, a Substitution of Attorney was filed wherein attorney Allysyn Overton substituted
8 out of this case. Wife is now self-represented.

9 9) On 9/8/2026, Husband filed a Supplemental Declaration in Support of Amended Request for
10 Orders. Husband states that on 8/19/2026, he received from Safeco's counsel an unredacted and
11 fully executed copy of the Confidential Settlement Agreement and Release, which he attaches as
12 Exhibit E. Husband states that the Settlement Agreement required Wife to deposit or interplead
13 one of the settlement checks in the Family Law Matter. Husband further states that he obtained a
14 copy of that check from Safeco, which was payable to five payees, and that records reflect the
15 check was paid on 1/28/2025. Husband states that he did not endorse the check and that the other
16 payees he contacted were unaware of the check. Husband states that there is no record that the
17 check was deposited or interpleaded in this Family Law Matter. Husband further states that
18 Safeco records reflect payments of \$140,684.79 on 1/2/2025 and \$223,000 on 1/3/2025, which do
19 not account for the full settlement amount. Husband contends that these records demonstrate the
20 need for the previously requested accounting and preservation relief. Husband also reports that a
21 Notice of Trustee's Sale was recorded against the Property on 9/1/2026, setting a sale for
22 9/30/2026 at 9:00 a.m. and stating an estimated unpaid balance and other charges of \$677,007.37.
23 Husband states he is not asking the Court to enjoin the trustee's sale.

24 10) Husband modifies his requests as follows:

25
26 "Because I obtained the fully executed Settlement Agreement directly from Safeco's counsel,
27 I withdraw Requested Order No. 2, Immediate Production of Settlement Agreement, as no
28 longer necessary.
29

1 I withdraw Requested Order No. 5, Authorization and Contingent Elisor, only insofar as it
2 concerns the Settlement Agreement itself. I continue to request the Authorization and the
3 contingent elisor as to the complete Safeco and Liberty Mutual claim file. Safeco has
4 identified confidentiality restrictions concerning post-settlement litigation and related activity
5 that Section 5.3(iv) does not address, and the complete claim file has not been produced to
6 me.

7
8 I continue to request Requested Orders Nos. 1, 3, 4, 6, and 7 of Attachment 7 to my Amended
9 Request for Order. In particular, in light of the U.S. Bank developments described above, I
10 continue to request the preservation relief stated in Requested Order No. 6.

11
12 I respectfully request that any orders made at the September 15, 2026 hearing be effective
13 upon pronouncement in open court and that the Court state the compliance deadlines on the
14 record, so that the deadlines requested in my Amended Request for Order are not affected by
15 the time required to prepare and enter the written findings and order after hearing.”

16
17 I therefore request that the scope of the follow-up compliance and enforcement hearing
18 include, in addition to the compliance and enforcement issues already requested:

- 19 a. reconciliation of the \$651,000.00 Settlement Payment and determination of the amount
20 received, deposited, transferred, withheld, disbursed, expended, remaining, or
21 unaccounted for;
- 22 b. characterization of the Safeco settlement proceeds;
- 23 c. determination of the amount of available proceeds subject to preservation and
24 allocation by this Court;
- 25 d. following characterization, transfer of proceeds determined to constitute community
26 property into an interest-bearing blocked account or other neutral depository designated
27 by the Court, with no withdrawal, transfer, encumbrance, or disbursement except
28 pursuant to further order of the Court; and
29

1 e. determination of the appropriate allocation and disbursement of proceeds determined to
2 constitute community property.

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4 If the Court determines that available Safeco settlement proceeds constitute community
5 property, I request that the Court consider their application, in priority, to the following:

6 a. payment of reasonable and necessary costs to repair and restore the community
7 Property; and

8 b. payment of amounts necessary to cure or reinstate the first mortgage secured by the
9 Property.

10
11 I request neutral custody of proceeds determined to constitute community property so that the
12 funds remain preserved while the Court directs their allocation and disbursement, and that no
13 withdrawal or disbursement from the blocked account or other Court-designated depository
14 occur except pursuant to further order of this Court.”

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16 11) Per the Proof of Service filed 9/11/2026, Husband’s Supplemental Declaration in Support of
17 Amended Request for Orders was mailed to Wife on 9/11/2026.

18 12) Wife has filed no pleadings responding to Husband’s Request for Order filed 7/20/2026, Husband
19 Amended Request for Order filed 8/11/2026, or Husband’s Supplemental Declaration in Support
20 of Amended Request for Orders filed 9/8/2026.

21 13) The Court notes the following future hearing dates:

22 a. 10/6/2026 – Hearing on Ms. Overton’s Motion to be Relieved as Counsel

23 b. 10/23/2026 – Mandatory Settlement Conference

24 **B. Findings and Order**

25 1) The Court notes that Section 5.3 of the Settlement Agreement attached as Exhibit E to Husband’s
26 9/8/2026 Supplemental Declaration in Support of Amended Request for Orders states: “The
27 Parties agree that this Agreement and all of its terms, including the Settlement Payment, shall
28 remain strictly confidential and shall not be disclosed or otherwise published to any third parties.
29 As limited exceptions to the foregoing, this Agreement and all of its terms may be disclosed: (i)

1 to the Parties' attorneys, accountants, and tax professionals; (ii) to Safeco's reinsurers; (iii) for
2 interpretation and/or enforcement purposes; (iv) for purposes of depositing or interpleading
3 Settlement Check No. 1 in the Family Law Matter and/or for any necessary purpose relating to
4 the Family Law Matter; and (v) as otherwise required by law, including, but not limited to, for
5 necessary regulatory purposes. The Parties further agree that, if this Agreement and/or any of its
6 terms is filed or otherwise lodged or disclosed with or to a court for enforcement, interpretation
7 and/or other approved purposes stated herein, the Party or Parties filing, lodging or disclosing the
8 Agreement and/or any of its terms shall seek to do so under seal. The Parties agree to notify each
9 other in the event they receive any request, discovery request, subpoena or court order calling or
10 potentially calling for production or disclosure of this Agreement or any testimony relating to it.
11 The Parties agree that this confidentiality provision is a material part of this Agreement."

- 12 2) Based on the foregoing, on the Court's own motion, the Court finds good cause to seal the
13 entirety of Husband's 9/8/2026 Supplemental Declaration in Support of Amended Request for
14 Orders. Husband is admonished not to attach the confidential settlement agreement to future
15 declarations. Husband is also admonished to follow California Rules of Court, rule 2.551 and
16 request to file under seal any future declarations wherein he specifically references the
17 Confidential Settlement Agreement signed by Wife and Safeco.
- 18 3) The Court finds that Husband's original Request for Order was properly served in advance of the
19 9/15/2026 hearing date, and Wife did not file an opposition or response. The Court finds good
20 cause to grant the following request sought in Husband's original Request for Order (which was
21 reiterated in Husband's Amended Request for Order and Husband's Supplemental Declaration in
22 Support of Amended Request for Orders). Effective immediately, Wife shall not transfer,
23 withdraw, spend, assign, encumber, conceal, commingle, dissipate, distribute, pledge, or
24 otherwise dispose of any remaining Safeco insurance settlement proceeds or any funds, accounts,
25 assets, or property traceable to those proceeds.
- 26 4) Because there is no Proof of Service demonstrating service of Husband's Amended Request for
27 Order filed 8/11/2026, and because Husband's Supplemental Declaration in Support of Amended
28 Request for Orders filed 9/8/2026 was not served at least 16 Court days before the 9/15/2026
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1 hearing, the Court finds good cause to set a future hearing date of **Tuesday, 10/6/2026 at 9:00**
2 **AM in Dept. 404** to address the requests set forth in those pleadings.

- 3 5) No later than 9/15/2026 at 5:00 PM, Husband shall mail and email a copy of his Amended
4 Request for Order filed 8/11/2026 to Wife. Husband shall file a Proof of Service demonstrating
5 compliance with this order in advance of the next hearing date.
- 6 6) Wife shall file and serve a Responsive Declaration at least 9 Court days prior to the 10/6/2026
7 hearing date.
- 8 7) Husband shall file and serve a Reply Declaration at least 5 Court days prior to the 10/6/2026
9 hearing date.
- 10 8) The Court will prepare the Findings and Order After Hearing.
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